

KALE REALTY

ANOTHER MLS LAWSUIT JUST LOST. **AGAIN.**

Almost every challenge like it has failed the exact same way.

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**A BROKER CALLED
THE MLS ACCESS
RULES A
MONOPOLY. A
FEDERAL APPEALS
COURT DISAGREED.**

Not a one-off loss. It's the pattern almost every
similar case ends on.

IF YOU'RE WAITING ON A COURT TO CHANGE YOUR DUES BILL, STOP WAITING.

On September 9, 2026, a three-judge Fifth Circuit panel rejected Texas broker Lou Eytalis's antitrust challenge to NAR's MLS access rules, ruling the "conclusory facts" in her suit were "insufficient to state an antitrust injury." Eytalis had called the membership requirement "an anti-competitive monopoly" and disputed roughly \$5,000 in 2023 and 2024 fees her local association charged inactive agents. Her case joins a pattern: almost every similar lawsuit has been dismissed or dropped, with only a few, including a Michigan brokers' case now before the Sixth Circuit, still working through appeals. The fee structure hasn't had to change, because the courts keep agreeing it doesn't have to.

IF YOUR DUES AND SPLIT DON'T SIT RIGHT, HERE'S THE ACTUAL LEVER:

- 1 Stop waiting on a court to do the math for you.**
The legal challenges keep losing on the same "insufficient injury" ground. That door isn't opening this year.
- 2 Read your own total, out loud, this week.**
Three-way dues, brokerage split, any franchise fee. Know the exact number before you decide anything about it.
- 3 Ask what it's actually buying you.**
Leads, support, training, marketing. If the total doesn't match the return, the fix is which brokerage you're at, not a lawsuit filed somewhere else.

THE TAKEAWAY

THE COURT ISN'T CHANGING YOUR SPLIT. YOUR NEXT DECISION IS.

Read your dues line by line before you renew, not after.